Fort Bend County District Court

Cause No. 2024-CV-0012

Amanda Hawkins, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	November 28, 2024
Plaintiff's counsel:	David Young, Sullivan & Palmer LLP

Parties

Plaintiff Amanda Hawkins is an individual residing in Texas who was the operator of a passenger vehicle involved in the collision described below. Defendant is an automobile liability insurer authorized to transact insurance business in the State of Texas, which issued a policy providing coverage to the at-fault driver and which is responsible for handling and resolving the related claims under that policy.

Facts

On March 7, 2024, Plaintiff was lawfully traveling in a single lane of traffic in Conroe. Another vehicle, operated by the insured driver under Defendant's policy, attempted to change lanes into the lane Plaintiff occupied without first confirming that the lane was clear. The insured vehicle sideswiped Plaintiff's vehicle, striking the driver's side and forcing Plaintiff's vehicle to shift sharply. Plaintiff did not contribute to the collision and had no reasonable opportunity to avoid it. Plaintiff reported the collision and submitted a claim to Defendant for the resulting injuries and property damage.

Negligence

The insured driver owed Plaintiff a duty to exercise ordinary care when changing lanes, including keeping a proper lookout, signaling, and confirming that the movement could be made safely. The insured driver breached that duty by moving into an occupied lane without yielding, and that breach directly caused the collision. Defendant, as the insurer responsible for the policy, is liable for the damages its insured is legally obligated to pay, and Defendant has failed to fairly evaluate and promptly pay the claim as required under the Texas Insurance Code and the Texas Administrative Code.

Damages

As a direct result of the collision, Plaintiff suffered a neck strain, with pain, stiffness, limited range of motion, and headaches. Plaintiff has incurred medical expenses for examination and treatment, lost time from work, and suffered physical pain and mental anguish. Plaintiff seeks atcual damages in an amount to be determined by the trier of fact, and requests that Defendant be ordered to pay the sum of $211,000.00, together with pre-judgment and post-judgment interest, costs of court, and such other relief to which Plaintiff may be entitled.